ZCAS UNIVERSITY

SCHOOL OF COMPUTING, TECHNOLOGY & APPLIED SCIENCES

CIT5611 – CYBER LAW FINAL EXAMINATION

DATE: TUESDAY 27th MAY, 2025

TIME: 14:00 - 17:00 HOURS

TIME ALLOWED : WRITING – THREE HOURS

READING – 5 MINUTES

INSTRUCTIONS:

1. Section A: This question is **compulsory** and must be attempted.
2. Sections B: Answer **TWO (2)** questions from this section.
3. This examination paper carries a total of **100 marks**.
4. Candidates must **not turn this page** until the invigilator tells them to do so.

SECTION A: Question 1 is compulsory and must be attempted

Case Study: The "FreeSpeechNow" Platform and Data Dilemma

"FreeSpeechNow" is a rapidly growing online social media platform that prides itself on uncensored content, allowing users worldwide to post anything from political opinions to artistic expressions. The platform operates under a strict policy of non-intervention in user-generated content, believing that any form of moderation infringes on absolute freedom of speech. This policy has led to its popularity among users seeking truly open discourse, but it has also attracted significant controversy.

Recently, "FreeSpeechNow" has faced immense pressure. In Country A, a user posted highly inflammatory content that incited violence, leading to real-world harm. The government of Country A demanded that "FreeSpeechNow" remove the content and provide user data to identify the perpetrator. "FreeSpeechNow" initially refused, citing its freedom of speech policy and asserting that the content was posted outside Country A's jurisdiction.

Simultaneously, "FreeSpeechNow" was found to be collecting extensive personal data from its users, including Browse history, location data, and communication patterns, without clear, explicit consent. This data was then sold to third-party advertisers. A major data breach subsequently exposed millions of user records, leading to widespread outrage and calls for stricter data protection.

Country B, where "FreeSpeechNow" has a significant user base, has strict data localization laws and newly implemented AI regulations. Country B's authorities are investigating "FreeSpeechNow" for non-compliance with its data privacy laws and for potentially using biased algorithms in its content recommendation engine, which inadvertently amplifies certain viewpoints.

The platform's CEO, Dr. Anya Sharma, is now grappling with the ethical and legal complexities of operating a global platform in a highly diverse regulatory environment.

Questions:

i After analyzing the ethical and legal considerations surrounding "FreeSpeechNow's" stance on absolute freedom of speech versus the demands for content control from Country A. Discuss the challenges of regulating online content across borders, making specific

reference to principles of freedom of speech and limitations mentioned in the course material. **(15 Marks)**

ii From an ethical and legal perspective, critically evaluate "FreeSpeechNow's" data collection practices and its responsibility for the data breach. Discuss the ethical theories that would condemn such practices and the type of government regulations (e.g., GDPR, CCPA) that would apply to "FreeSpeechNow's" actions. **(15 Marks)**

iii Considering the jurisdictional challenges faced by "FreeSpeechNow" with Country A, explain why inter-government collaboration is essential for regulating cyberspace. Provide examples of collaborative initiatives or principles that could help resolve such cross-border disputes. **(10 Marks)**

iv Discuss the implications of Country B's new AI regulations on "FreeSpeechNow's" operations, particularly concerning algorithmic bias. How should "FreeSpeechNow" approach the ethical development and deployment of its AI systems in light of evolving global regulations? **(10 Marks)**

(Total: 50 marks)

SECTION B: Attempt any TWO (2) questions in this section

Question 2

Critically evaluate the application of Utilitarianism and Deontology in addressing two (2) contemporary ethical issues prevalent in the digital sphere, such as online harassment, misinformation, or surveillance. Discuss how each theory would approach the ethical dilemma and its potential solutions, highlighting their strengths and limitations in the context of the Internet.

(25 Marks)

Question 3

i Explain the concept of the "digital divide" and its ethical implications in the context of global internet access and development. **(10 Marks)**

ii Discuss the evolution of government regulation of the Internet from its early stages to the current AI and emerging technology era. Highlight at least three (3) significant legislative or regulatory frameworks and their impact on internet governance. **(15 Marks)**

(25 marks)

Question 4

With specific reference to the legislative developments in Zambia concerning cyber security and cybercrimes, analyze how these laws attempt to balance national security concerns with freedom of expression. Discuss at least two (2) specific provisions from the Zambian Cyber Security and Cyber Crimes Act (as amended) that have raised concerns regarding their potential impact on online free speech and privacy.

(25 marks)

END OF EXAMINATION